



PARENT COMPANY GUARANTEE

March 6th, 2024

To: Qingdao McDermott Wuchuan Offshore Engineering Co., Ltd

Dear Sirs,

Re: Irrevocable Guarantee (this "Guarantee")

1. In consideration of Qingdao McDermott Wuchuan Offshore Engineering Co., Ltd ("you" or the "Bank") granting or continuing advances or otherwise giving credit or affording banking facilities or other accommodation from time to time to J Ray McDermott de Mexico, SA de CV, (the "Borrower(s)"), we, McDermott International, Ltd., having its executive office in 915N. Eldridge Pkwy, Houston, Texas 77079 (the "Guarantor"), hereby unconditionally and irrevocably undertake, agree and guarantee the full and timely performance by the Borrower(s) of all its obligations under the Facility Offer Letter dated March 6th, 2024 between you and the Borrower(s) (such agreement, as it may be amended, restated, replaced, supplemented or otherwise modified from time to time, being hereinafter referred to as the "Agreement"), upon your written demand, to promptly repay you and fully settle and discharge all the existing and future outstanding liabilities of the Borrower(s) together with all interest, commission, costs, expenses and charges now or from time to time due owing or incurred by the Borrower(s) to you on any Agreement (whether actually or contingently and whether solely or jointly with any other person and whether as principal or surety or otherwise in whatever style or name) in the same currency and the same place of payment. Such amounts shall be paid promptly on written demand by the Guarantor to you without any objection or any investigation.

2. The maximum amount of the Guarantor under this Guarantee shall be limited to the principal sum outstanding under all the credit facilities pursuant to the Agreement, plus interest, fees, charges, costs and other charges due under the Agreement. Subject to such maximum amount, the Guarantor expressly acknowledges and agrees that:

(a) The liability of the Guarantor under this Guarantee shall be equal to the amounts outstanding from the Borrower(s) to you from time to time and such liability shall not be discharged or affected by the aggregate utilization of any overdraft or revolving credit facility in excess of the maximum amount stated above or repayment made in relation to any such overdraft or revolving credit facility in excess of the maximum amount stated above.



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(b) The Guarantor hereby expressly consents to any modification, extension, amendment, waiver, release or change to the Agreement, any increase, reduction or change in the credit facilities granted to the Borrower(s) or securities obtained under the Agreement, or any time or other concession granted from time to time by you to the Borrower(s); provided that the liability of the Guarantor shall not exceed the maximum amount stated above.

(c) The Guarantor shall indemnify the Bank from time to time on written demand from and against any loss, claim and expense incurred by the Bank should any of the amounts owed by the Borrower(s) not be recoverable from the Borrower(s)/or any other person for any reason whatsoever.

3. The Guarantor hereby irrevocably authorizes and requests you to apply any sums standing to the credit of any account(s) in the name(s) of the Guarantor to settle and discharge all the outstanding liabilities of the Borrower(s) together with all interest, commission, banking charges and all fees, costs, expenses and charges.

4. This Guarantee shall be a continuing guarantee for the liabilities of the Borrower(s) to you under the Agreement and it shall not be discharged by any intermediate payment whether in whole or in part from time to time by Borrower(s) of its liabilities to you. The discharge of all such liabilities of the Borrower(s) is hereby guaranteed by the Guarantor and this Guarantee shall continue in force until the liabilities of the Borrower(s) are fully settled to your reasonable satisfaction. This Guarantee shall be, and the liability of the Guarantor shall remain, valid and binding and shall not be discharged or affected despite any dissolution, reorganization, liquidation, winding-up, bankruptcy, financial difficulty or insolvency of the Borrower(s)/Guarantor or any change whatsoever in the Borrower(s)'s/Guarantor's status, constitution, control, ownership or composition.

5. The liability of the Guarantor under this Guarantee shall be as principal obligors and not merely as surety, and you shall not be obliged to first enforce your rights against the Borrower(s).

6. This Guarantee: (a) shall be in addition to and shall be independent of every other security which you may at any time hold as a security for the repayment of the Borrower(s)'s liabilities owed to you; and (b) is a continuing one and it is not affected by any limitation of action(s) or time barring laws/acts and remains binding upon the Guarantor and valid until full and final settlement of the total liability which settlement is only evidenced by an endorsement to this effect made by you on the original Guarantee and the same endorsed instrument is delivered by you to the Guarantor.

7. This Guarantee shall be an absolute obligation of the Guarantor without regard to the enforceability of any liability of the Borrower(s) to you.



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8. The Guarantor shall not, without the Bank's prior written consent, enforce or seek to enforce in competition with the Bank any right of contribution or indemnity from or against the Borrower(s) or any other person to which the Guarantor may be entitled by reason of the performance of the Guarantor's obligations hereunder. Notwithstanding this clause, any payment or distribution, in kind or character, which is received or obtained by us from the Borrower(s) by reason of the performance of the Guarantor's obligations hereunder shall be deemed to have been received by us and are held in the custody by us for you and we agree to immediately pay to you such payment or distribution for application in or towards discharge of our obligations hereunder.
9. All payments by the Guarantor under this Guarantee shall be made free and clear of any set-off or deduction in immediately available, freely transferable, cleared funds for value on the due date.
10. You shall be entitled at any time to set-off amounts due under this Guarantee from any account(s) of the Guarantor or any joint account of the Guarantor held with any of your branches either within or outside the United Arab Emirates.
11. If any provision of this Guarantee becomes invalid, illegal or unenforceable, the validity, legality and enforceability of the remaining provisions hereof shall not be affected or impaired.
12. If this Guarantee is signed by more than one guarantor, then the liabilities of the Guarantors shall be joint and several.
13. The Guarantor hereby agrees that any notice required to be served on the Guarantor in writing shall be deemed to have been sufficiently served on our registered address, or our last known address if sent by courier.
14. All rights, powers and remedies provided in this Guarantee are cumulative and are not, nor are to be construed as, exclusive of any rights, powers or remedies provided by law. No failure to exercise nor any delay on your part in exercising any right, power or remedy provided in this Guarantee or by law shall operate as a waiver thereto nor shall any single or partial exercise of any such right, power or remedy preclude any further or other exercise of the same such right, power of remedy or the exercise of any other such right, power or remedy.
15. All reasonable and documented out-of-pocket costs, charges and expenses incurred by you in relation to this Guarantee including the costs, charges and expenses incurred in the enforcement of this Guarantee and powers conferred hereby shall be paid on demand by the Guarantor.
16. The Guarantor hereby irrevocably agrees to indemnify and keep you indemnified against all losses, claims, costs, charges and expenses which you may incur in proceedings against the Borrower(s) and/or the Guarantor (except for any losses, fees, costs, charges or expenses caused by your gross negligence or willful misconduct) until such time we shall have discharged all our obligations under this Guarantee.
17. The Guarantor confirms that the Guarantor has the corporate power and authority to extend and execute this Guarantee.
18. Your entries, books and registers shall be conclusive evidence as to the correctness of the amount of the liabilities owed by the Borrower(s) to you.



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19. Where the context so admits herein: (a) the expression "Borrower(s)" shall include its successors and permitted assigns and the expression "you" shall include Qingdao McDermott Wuchuan Offshore Engineering Co., Ltd and its successors and assigns; (b) any reference herein to a person shall include a company, partnership or other entity; and (c) where the expression "We" and "us" indicates to a partnership, then the obligations expressed to be of us shall be deemed to be of such persons comprising the partnership jointly and severally.

20. This Guarantee shall be governed by and construed in accordance with the laws of the country where the Guarantor is incorporated. The Guarantor also further submits to the non-exclusive jurisdiction of the courts of the country where the Guarantor is registered. You may additionally bring legal proceedings in any court with jurisdiction over the Guarantor or the assets of the Guarantor.

22. [The Guarantor and the Bank acknowledge and agree that, with effect as of the date hereof, this Guarantee supersedes, substitutes, and replaces the Parent Company Guarantee executed by [the Guarantor or McDermott entity] on [date] and any other pre-existing agreements and understandings, both written and oral, between the Guarantor and/or the Bank with respect to the subject matter of this Guarantee (the "Prior Guarantee"), and that the Prior Guarantee shall be terminated, of no further force and effect and Guarantor shall have no obligations relating thereunder.]

For and on behalf of the Guarantor

Signed for and on behalf of
McDermott International, Ltd.

Signature: 

Name: Kevin Leader
Title: VP Treasurer

Date: March 6th, 2024